

Higher-Level Review (HLR) Walkthrough — Form 20-0996

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When to use HLR

You file an HLR when **you believe VA misapplied the law or misweighed the evidence already in your file**. No new evidence is allowed in the HLR lane. The senior reviewer looks at the same record and makes a fresh decision.

Use HLR when:

- You disagree with how a regulation was applied
- You think VA missed evidence already in your file
- You spot a math error in the rating combination
- You want to challenge an effective date based on existing evidence

Do NOT use HLR when:

- You have new medical records, lay statements, or buddy letters → file Supplemental Claim instead
 - The decision is more than 1 year old without a continuing claim chain → CUE territory; consult an accredited rep
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Filing window

- Generally **1 year from the date of the decision** you're disputing
 - Filing within 1 year **preserves your effective date**
 - Filing after 1 year may forfeit the effective date
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What you'll need

- ☐ A copy of the rating decision you're disputing
 - ☐ The decision date (usually on the cover letter)
 - ☐ The specific issue(s) you want reviewed
 - ☐ Your reasoning for each issue (legal or factual error)
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Filling out Form 20-0996

Section I — Veteran Information

Standard demographic fields. Match exactly what's in VA's system. If you're a representative, complete Section I-B.

Section II — Decision being reviewed

- Box A: Date of the decision letter (not the date you received it)
- Box B: List each contention you want reviewed. Be specific. Don't say "I disagree with everything."

Section III — Type of review

Two options:

- **Direct review** — paper review only, no conference
- **Informal conference** — 30-minute call with the senior reviewer (RECOMMENDED)

TIP: Always check informal conference. Even if your case is clean, a phone call with a senior reviewer beats paper-only review nine times out of ten. You can clarify points, hear their reasoning in real time, and respond.

Section IV — Identify the error

This is the most important section. Be specific about the legal or factual error. Examples:

Legal error example:

"VA failed to apply 38 CFR § 4.7 (rule for resolving doubt in favor of higher rating). My exam findings of [X] support a higher rating under DC [Y]."

Factual error example:

"The April 2024 C&P examiner's report contains observations on pages 3–4 documenting [specific symptoms] that meet the criteria for [X]% under DC [Y]. The rating decision overlooked these findings."

TIP: Cite specific page numbers, exam dates, and regulation sections. Vague disagreement loses; surgical disagreement wins.

Section V — Signature

Date and sign. If you have a representative, they sign too.

After filing

1. **Confirmation** — VA acknowledges receipt within ~30 days
 2. **Conference scheduling** — if you opted in, you'll get a phone slot within 60–120 days
 3. **Decision** — typical turnaround: 4–7 months (varies by RO)
 4. **Outcome** — three possibilities:
 - Granted as requested (effective date preserved)
 - Granted in part
 - Denied — your next move is Board of Veterans' Appeals (BVA) or Supplemental Claim with new evidence
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What to bring to the informal conference

- The original decision letter
- Your Form 20-0996 (have your stated errors in front of you)
- Page numbers and exact quotes from records you're citing
- A short list of questions for the reviewer
- A pen and paper for notes

The reviewer is on the clock. **Lead with your strongest argument.**

Common mistakes

1. **Submitting new evidence.** Anything new gets ignored on HLR. File a Supplemental Claim instead.
 2. **Vague disagreement.** "I deserve more" is not a legal or factual error.
 3. **Missing the 1-year window.** Set a calendar reminder the day you receive any rating decision.
 4. **Not requesting the conference.** It's free and dramatically improves outcomes.
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Sample cover statement

You can attach a separate statement to your 20-0996. Here's a starter template:

Re: Higher-Level Review Request — [Your Name], File Number [X]

I am requesting a Higher-Level Review of the rating decision dated [DATE] regarding [ISSUE].

Issue 1: [Specific contention]

The decision states [QUOTE]. However, the evidence of record shows [SPECIFIC EVIDENCE WITH PAGE NUMBERS]. This appears to be a [legal/factual] error because [REASONING WITH REGULATION CITATION].

Requested action: *[SPECIFIC OUTCOME — e.g., "increase rating from 30% to 50% under DC 9411 with effective date of February 10, 2025"]*

[Repeat for each issue]

Respectfully submitted, [Signature, date]

Where to file

- **Online:** VA.gov → Disability → File a higher-level review
- **Mail:** Department of Veterans Affairs, Claims Intake Center, PO Box 4444, Janesville, WI 53547-4444
- **Fax:** 844-531-7818

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